

25CHCV01238 25CHCV01238

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DEFENDANTS FARNUM DARABI, KEYKHOSROW DARABI AND SIMA
SADAFI'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

Motion filed on April 14, 2026.

MOVING PARTY: Defendants Farnum Darabi, Keykhosrow Darabi, and Sima Sadafi,
erroneously sued as Sima Darabi

RESPONDING PARTY: None

NOTICE: OK.

RELIEF REQUESTED: Leave to file a cross-complaint against Defendants Leonardo
Canta and Kevin Canta.

RULING: Granted.

BACKGROUND

On April 8, 2025, Plaintiff Linda Park filed this action
against Defendants Leonardo Canta, Kevin Canta, Farnum Darabi, Keykhosrow
Darabi, and Sima Darabi. Defendants Farnum Darabi, Keykhosrow Darabi, and Sima

Sadafi, erroneously sued as Sima Darabi (Darabi Defendants), answered the Complaint on May 20, 2025. Leonardo Canta answered the Complaint on June 24, 2025. Kevin Canta's default was entered on March 26, 2026 and vacated on May 6, 2026.

On April 14, 2026, the Darabi Defendants filed this motion for leave to file a cross-complaint against Leonardo Canta and Kevin Canta (Canta Defendants), supported by the declaration of Jason A. Barresi and the proposed cross-complaint. No timely opposition was filed.

DISCUSSION

A party shall file a cross-complaint against any party who filed the complaint or cross-complaint against that party before or at the same time as the answer. (Code Civ. Proc., § 428.50, subd. (a).) Any other cross-complaint may be filed at any time before the court has set a date for trial. (Code Civ. Proc., § 428.50, subd. (b).) A party must obtain leave of court to file any cross-complaint not filed within those time limits, and leave may be granted in the interest of justice at any time during the action. (Code Civ. Proc., § 428.50, subd. (c).) Code of Civil Procedure section 426.50 also provides that leave to file a related cross-complaint shall be granted if the party acted in good faith, and the statute must be liberally construed to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50.) "A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result." (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99.)

California Rules of Court, rule 3.1324 requires the motion to include a copy of the proposed pleading and a declaration specifying the effect of the proposed pleading, why it is necessary and proper, when the facts giving rise to the proposed pleading were discovered, and why the request was not made earlier.

Here, the Darabi Defendants seek to file a cross-complaint against the Canta Defendants. The proposed cross-complaint asserts causes of action for apportionment of fault, declaratory relief, and indemnity. (Barresi Decl. ¶ 2, Ex. A.) The proposed claims arise from the same alleged dog-bite incident at issue in Plaintiff's Complaint because the Darabi Defendants contend the Canta Defendants owned or housed the dog and allowed it to escape

or otherwise leave their premises, resulting in the alleged attack on Plaintiff. (Barresi Decl. ¶ 3.) The proposed cross-complaint therefore falls within Code of Civil Procedure section 428.10, subdivision (b).

The Darabi Defendants substantially comply with rule 3.1324.

The motion attaches the proposed cross-complaint and summons as Exhibit A. (Barresi Decl. ¶ 2, Ex. A.) Because the Darabi Defendants seek leave to file an initial cross-complaint, there are no allegations in a prior cross-complaint to identify as deleted or added. The proposed pleading shows the effect of the requested filing, which is to assert apportionment, declaratory relief, and indemnity claims against the Canta Defendants. (Barresi Decl. ¶ 2, Ex. A.) The moving papers also explain why the proposed cross-complaint is necessary and proper because the proposed claims concern responsibility for the same incident alleged in Plaintiff's Complaint. (Barresi Decl. ¶ 3.)

Leave is warranted in the interest of justice. The Darabi Defendants filed this motion on April 14, 2026, before the Court set a trial date. Trial has since been set for July 17, 2028. No timely opposition was filed. The record does not show prejudice, delay, or bad faith. Allowing the proposed cross-complaint will permit the related apportionment and indemnity issues to be determined in this action.

CONCLUSION

The motion is granted. The Darabi Defendants shall file the proposed cross-complaint attached as Exhibit A to the motion within 5 days after notice of this order.